



CHAPTER lxxxix.

An Act to confirm a Provisional Order of the Local A.D. 1910.
Government Board relating to Wallsend.

[3rd August 1910.]

WHEREAS the Local Government Board have made the
Provisional Order set forth in the schedule hereto under
the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority as the same as follows:—

1. The Order as altered and set out in the schedule hereto
shall be and the same is hereby confirmed and all the provisions
thereof shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's
Provisional Order Confirmation (No. 15) Act 1910.

Short title.

A.D. 1910.

S C H E D U L E.

BOROUGH OF WALLSEND.

Wallsend *Provisional Order made in pursuance of Sections 54 and 59 of*
Order. *the Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of
Wallsend ; —

To the Justices of the Peace for the said Borough ; —

To the Justices of the Peace for the County of Northumberland
in Quarter Sessions assembled ; —

To the County Council of Northumberland ; —

To the Urban District Council of Willington Quay ; —

To the Rural District Council of Tynemouth ; —

To the Guardians of the Poor of the Tynemouth Union ; —

To the Parish Councils of Longbenton and Willington ; —

To the Overseers of the Poor of the Parishes of Longbenton
Wallsend Willington and Willington Quay ; —

To the Tyne Port Sanitary Authority ; —

To the Earsdon Joint Hospital Board ; —

To the Wallsend and Willington Quay Joint Hospital Board ; —

To the Joint Committee appointed by the Council of the Borough
of Wallsend the Urban District Council of Willington Quay
and the Parish Council of Willington and exercising the
powers and duties of the Authority under the Burial Acts
1852 to 1906 ; —

To the Longbenton Burial Board ; —

And to all others whom it may concern.

51 & 52 Vict. c. 41. WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough ;

And whereas the Borough of Wallsend in the County of Northum-
berland is a Borough within the meaning of the Local Government
Act 1888 and the inhabitants are a body corporate by the name of the

Mayor Aldermen and Burgesses of the Borough of Wallsend and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) six Aldermen and seventeen other Councillors and the said Borough is for the purposes of the election of Councillors divided into six wards known respectively as the Buddle Ward the Carville Ward the Hadrian Ward the Holy Cross Ward the Northumberland Ward and the Wallsend Ward;

A.D. 1910.

*Wallsend
Order.*

And whereas the said Borough is co-extensive with the Parish of Wallsend and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas the said Borough has a separate commission of the peace;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Northumberland are the local education authority for the other purposes of that Act;

2 Edw. 7.
c. 42.

And whereas the Urban District Council for the said Borough or their predecessors have adopted the provisions of—

(A) The Infectious Disease (Prevention) Act 1890;

(B) The Public Health Acts Amendment Act 1890; and

(C) The Notification of Births Act 1907;

53 & 54 Vict.
c. 34.

53 & 54 Vict.
c. 59.

7 Edw. 7.
c. 40.

and those provisions are accordingly in force in the said Borough;

And whereas the Urban District of Willington Quay in the County of Northumberland immediately adjoins the said Borough and is co-extensive with the Parish of Willington Quay and is subject to the jurisdiction of the Urban District Council of Willington Quay;

And whereas the Urban District Council of Willington Quay or their predecessors have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the Public Health Acts Amendment Act 1890 and those provisions are accordingly in force in the Urban District of Willington Quay;

And whereas the Parishes of Longbenton and Willington in the County of Northumberland immediately adjoin the said Borough and are contributory places in the Rural District of Tynemouth and are subject to the jurisdiction of the Rural District Council of Tynemouth and three Rural District Councillors are elected for the Parish of Longbenton and one Rural District Councillor is elected for the Parish of Willington;

And whereas the said Rural District Council or their predecessors have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and those provisions are accordingly in force in the said Rural District;

[Ch. lxxxix.] *Local Government Board's* [10 EDW. 7 &
Provisional Order Confirmation (No. 15) Act, 1910. 1 GEO. 5.]

A.D. 1910.

*Wallsend
Order.*

3 & 4 Will. IV.
c. 90.

And whereas the Lighting and Watching Act 1833 has been adopted in the said Parishes of Longbenton and Willington;

And whereas the Parishes of Longbenton Wallsend Willington and Willington Quay are included in the Tynemouth Union and seven guardians are elected for the Parish of Wallsend three guardians are elected for the Parish of Willington Quay and the four Rural District Councillors elected for the Parishes of Longbenton and Willington are the representatives of those Parishes on the Board of Guardians of the said Union;

And whereas in pursuance of the Education Act 1902 the said Parishes of Longbenton Willington and Willington Quay form part of the area of the County Council of Northumberland as the local education authority;

56 & 57 Vict.
c. 73. And whereas the said Parishes of Longbenton and Willington are rural parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been established;

15 & 16 Vict.
c. 85.
6 Edw. 7.
c. 44. And whereas by virtue of subsection (2) of Section 53 of the Local Government Act 1894 the powers and duties of the authority under the Burial Acts 1852 to 1906 for an area now comprised in the said Parishes of Wallsend Willington Quay and Willington were transferred to the Council of the said Borough the Urban District Council of Willington Quay and the Parish Council of Willington and the said powers and duties are exercised by a Joint Committee appointed in pursuance of the said section;

And whereas the Longbenton Burial Board is the authority for the execution of the Burial Acts 1852 to 1906 for part of the said Parish of Longbenton;

And whereas by virtue of the Wallsend and Willington Quay Joint Hospital Orders 1892 and 1896 which were duly confirmed by Parliament the said Borough and the said Urban District constitute the Wallsend and Willington Quay Joint Hospital District of which the governing body is the Wallsend and Willington Quay Joint Hospital Board;

And whereas by virtue of the Earsdon Joint Hospital Order 1904 which was duly confirmed by Parliament the Rural District of Tynemouth is a Constituent District of the Earsdon Joint Hospital District formed in pursuance of that Order;

And whereas by virtue of an Order of the Local Government Board dated the Twenty-ninth day of March One thousand eight hundred and ninety-seven as altered by a further Order of the Local Government Board dated the Second day of November One thousand nine hundred and five the Tyne Port Sanitary Authority is the port

sanitary authority for certain parts of the Ports of Newcastle North Shields and South Shields and the Urban District Council for the said Borough and the Urban District Council of Willington Quay being riparian authorities for one or more of the said Ports are in the case of each Council represented on the said Port Sanitary Authority by one member:

A.D. 1910.

*Wallsend
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

51 & 52 Vict.
c. 41.

Art. I. In this Order—

Definitions.

- (1) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred and ten;
- (2) The expression "the existing Borough" means the Borough of Wallsend as it existed immediately prior to the commencement of this Order;
- (3) The expression "the Borough" means the existing Borough as extended by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;
- (5) The expressions "the County" and "the County Council" mean respectively the Administrative County of Northumberland and the County Council of that County;
- (6) The expressions "the Urban District" and "the Urban Council" mean respectively the Urban District of Willington Quay and the Urban District Council of that District;
- (7) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Tyne-mouth and the Rural District Council of that District;
- (8) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Wallsend as extended 1910" and sealed with the official seal of the Local Government Board;
- (9) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Wallsend as extended 1910" and sealed with the official seal of the Local Government Board;

A.D. 1910.
 ———
Wallsend
Order.

- (10) The expression "the added areas" means the Urban District the area whereof is coloured green on the Borough maps the Parish of Willington the area whereof is coloured brown on the Borough maps and the part of the Parish of Longbenton which is added to the existing Borough by this Order;
- (11) The expression "the added part of Longbenton" means the part of the Parish of Longbenton which is coloured blue on the Borough maps;
- (12) The expressions "the existing Parish of Wallsend" and "the existing Parish of Longbenton" mean in each case the Parish as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Wallsend" and "the Parish of Longbenton" mean in each case the Parish as altered by this Order;
- (13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (15) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;
- (16) The expressions "the Wallsend &c. Burial Committee" and "the Wallsend &c. Burial Area" mean respectively the joint committee appointed by the Corporation the Urban Council and the Parish Council of Willington under subsection (2) of Section 53 of the Act of 1894 for the purposes of the Burial Acts and the area within which the Wallsend &c. Burial Committee exercise the powers and duties of the authority under the Burial Acts;
- (17) The expression "the Longbenton Burial Area" means the area subject to the jurisdiction of the Longbenton Burial Board.

Commence-
 ment of
 Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and ten:

Date of
 operation
 of Order for

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the

Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and ten and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order.

A.D. 1910.

*Wallsend
Order.*

parish bur-
gess lists &c.
51 Vict. c. 10.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the Urban District and so much of the Rural District as comprises the Parish of Willington and the added part of Longbenton.

Extension of
Borough.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council to the Board of Inland Revenue to the Registrar-General and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries.

Deposit of
maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation All fees so received shall be carried to the credit of the Borough fund.

Copies of
map to be
evidence.

[Ch. lxxxix.] *Local Government Board's* [10 EDW. 7 &
Provisional Order Confirmation (No. 15) Act, 1910. 1 GEO. 5.]

A.D. 1910.

*Wallsend
Order.*

Powers and
duties of
justices &c.
extended.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough:

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Parish bur-
gess lists &c.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the Borough.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing Borough or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk to the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Number of
Councillors
and Alder-
men.

Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-seven and the number of Aldermen of the Borough shall be increased from six to nine.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

A.D. 1910.

*Wallsend
Order.*

Division into
wards.

- (1) For the purposes of the election of Councillors the Borough shall be divided into nine wards which shall be named respectively the Buddle Ward the Carville Ward the Hadrian Ward the Holy Cross Ward the Howdon Ward the Northumberland Ward the Wallsend Ward the Willington Ward and the Willington Quay Ward:

- (2) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps:

Boundaries
of wards.

- (3) Three Councillors shall be assigned to each of the said wards.

Art. IX. For the purposes of the election of a town council for the Borough in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred and ten the following provisions shall apply:—

Provisions
for election of
Councillors
in 1910.

- (A) The town clerk and the Mayor of the existing Borough or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing Borough shall be the returning officer at the election for all the wards Provided that the Mayor of the existing Borough or if he is unable to act the Local Government Board may appoint some other person to act as returning officer at the election for any of the wards:

- (B) Twenty-seven Councillors of the Borough shall be elected on the First day of November One thousand nine hundred and ten and nine Aldermen of the Borough shall be elected on the Ninth day of November One thousand nine hundred and ten Of the Aldermen so elected two shall be chosen from among the Councillors elected for the Howdon and Willington Quay Wards and one shall be chosen either from among the Councillors elected for the Willington Ward or from among the persons qualified to be Councillors whose qualifying property is situated in that ward:

- (C) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing Borough who shall be in office on the First day of November One thousand nine hundred and ten shall go out of office on that date and all the Aldermen of the existing Borough

A.D. 1910.

*Wallsend
Order.*

who shall be in office on the Ninth day of November One thousand nine hundred and ten shall go out of office on that date and all the said Councillors and Aldermen shall be eligible for election as Councillors of the Borough on the First day of November One thousand nine hundred and ten.

Retirement
of Council-
lors and
Aldermen
elected in
1910.

Art. X.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and ten in pursuance of this Order shall retire as follows:—

(A) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and eleven:

(B) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and thirteen:

(C) The other Councillor for each ward on the First day of November One thousand nine hundred and twelve.

(2) The Aldermen elected for the Borough in the year One thousand nine hundred and ten in pursuance of this Order shall retire as follows:—

(A) The four Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and thirteen:

(B) The other five Aldermen on the Ninth day of November One thousand nine hundred and sixteen.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and ten or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Byelaws &c.

Art. XI.—(1) Subject to the provisions of this Order all byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws regulations list of tolls table of fees payments or scale of charges may be altered or repealed.

(2) All byelaws and regulations made by the Urban Council the Rural Council or their predecessors and in force immediately before

the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Council of the District in which the part is situated and that District. Provided that any proceedings which if this Order had not been made might have been taken by the Urban Council or by the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations made by that Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

A.D. 1910.

*Wallsend
Order.*

Art. XII.—(1) The Acts confirming the Wallsend and Willington Quay Joint Hospital Orders 1892 and 1896 so far as the said Acts relate to those Orders shall be repealed except so far as the said Acts may have been acted upon and the Wallsend and Willington Quay Joint Hospital District shall be dissolved and the Wallsend and Willington Quay Joint Hospital Board shall be abolished.

Hospital
Districts.
55 & 56 Vict.
c. cxcviii.
59 Vict.
c. xxx.

(2) The Act confirming the Earsdon Joint Hospital Order 1904 so far as the said Act relates to that Order shall be adapted and modified so that in relation to the said Act and Order the following provisions shall have effect that is to say:—

4 Edw. 7.
c. lxiv.

(A) The Parish of Willington and the added part of Longbenton shall respectively cease to form part of the Earsdon Joint Hospital District:

(B) References to the Rural District as diminished by this Order and the Council of that district shall be substituted for references to the Rural District and the Rural District Council.

Art. XIII. Subject to the provisions of any order which the Local Government Board may hereafter make the said Order dated the Twenty-ninth day of March One thousand eight hundred and ninety-seven as altered by the said Order dated the Second day of November

Tyne Port
Sanitary
Authority.

[Ch. lxxxix.] *Local Government Board's* [10 EDW. 7 &
Provisional Order Confirmation. (No. 15) Act, 1910. 1 GEO. 5.]

A.D. 1910. One thousand nine hundred and five shall be further altered so that
Wallsend
Order. in relation to the said Orders the following provisions shall have effect
that is to say :—

- (A) Every reference to the Urban District and the Urban Council shall be omitted :
- (B) References to the Borough shall be substituted for references to the existing Borough :
- (C) The Corporation of the Borough shall be represented upon the Tyne Port Sanitary Authority by two members instead of one member and the two persons who immediately before the commencement of this Order are the members of the said Port Sanitary Authority representing the Corporation of the existing Borough and the Urban Council shall represent the Corporation of the Borough upon the said Port Sanitary Authority until the date upon which they would have retired if this Order had not been made.

Town clerk
and other
officers con-
tinued.

Art. XIV.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough
auditors.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Compensa-
tion to exist-
ing officers.

Art. XV.—(1) The provisions of subsection 13 of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Urban Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

(2) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1).

of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1910.
Wallsend
Order.

(3) For the purposes of subdivision (2) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XVI.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Urban Council or by or against the Wallsend and Willington Quay Joint Hospital Board or by or against the Wallsend &c. Burial Committee or by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Actions &c.
not to abate.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Urban Council or by the Wallsend and Willington Quay Joint Hospital Board or by the Wallsend &c. Burial Committee or by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Urban Council the Hospital Board the Burial Committee the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
contracts &c.

Art. XVII. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the

Corporation
property &c.

A.D. 1910. benefit of the existing Borough shall by virtue of this Order be held
Wallsend by the Corporation for the benefit of the Borough and the Corporation
Order. shall hold enjoy and exercise for the benefit of the Borough all the
powers which at the date aforesaid are exerciseable by or vested in
the Corporation for the benefit of the existing Borough and all liabilities
which on the date aforesaid attach to the Corporation in respect of the
existing Borough shall from and after that date attach to them in
respect of the Borough.

Liquidation of current debts and liabilities by Urban Council &c. Art. XVIII. The Urban Council and the Wallsend and Willington Quay Joint Hospital Board shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Property &c. of Urban and Rural Councils. Art. XIX. Subject to the provisions of this Order—

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Urban Council and the Wallsend and Willington Quay Joint Hospital Board and all property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to the Parish of Willington or the added part of Longbenton shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to the Parish of Willington or the added part of Longbenton conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:

(2) The Urban Council shall at the commencement of this Order be abolished and cease to exist and the Rural Council shall cease to exercise any powers or have any duties within the Parish of Willington or the added part of Longbenton:

Arrears of rates &c.

(3)—(A) All arrears of rates made by the Urban Council and all other payments which at the commencement of this Order are due or owing to the Urban Council may be collected and recovered by the Corporation:

(B) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments

in the Parish of Willington and the added part of Longbenton may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Councils of Willington and Longbenton under the last-mentioned Act and the balances (if any) shall be paid to the Corporation :

A.D. 1910.

*Wallsend
Order.*

(4) Any balance in the hands of the Overseers of the Parish of Longbenton at the commencement of this Order shall be a matter for adjustment under Section 62 of the Act of 1888 :

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

Adaptation
of provisions
as to adjust-
ment.

(6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the amalgamation of the added areas with the existing Parish of Wallsend that section shall have effect—

(A) As if the Overseers of the Parishes of Wallsend and Longbenton and the persons who immediately before the commencement of this Order were the Overseers of the Parishes of Willington and Willington Quay respectively or where the circumstances of the case so require any persons who may be substituted for those

A.D. 1910.

*Wallsend
 Order.*

persons by an Order of the Local Government Board were within the meaning of the said section as applied by this Article authorities affected by this Order; and

(B) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the Section; and

(c) As if for subsections (6) and (7) of the said Section there were substituted the subsections hereunto appended that is to say:—

“ (6) If it is necessary for the purpose of giving
 “ effect to any agreement or award for an adjust-
 “ ment that a separate rate shall be levied in part
 “ of a parish only the agreement or award may
 “ authorise the making of such a separate rate as if
 “ it were a poor rate and as if the part of the parish
 “ on which it is to be levied were a whole parish:”

“ (7) Any sum paid for the purposes of any
 “ adjustment or in pursuance of any order or award
 “ of an arbitrator shall be applied by such person
 “ in such manner and for such purpose as the Local
 “ Government Board may authorise or direct.”

Mortgage
 debts of
 Urban
 Council Cor-
 poration &c.

Art. XX. Subject to the provisions of this Order—

- (1) The liability for repayment of any moneys borrowed by the Urban Council or the Wallsend and Willington Quay Joint Hospital Board or of any moneys borrowed for the purposes of the Burial Acts in respect of the Wallsend &c. Burial Area or of so much of any of those moneys as is owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation:
- (2) So much as at the commencement of this Order is outstanding in respect of the moneys borrowed as aforesaid by the Urban Council or the said Joint Hospital Board together with so much of any sums borrowed by the Corporation as at the commencement of this Order is owing and charged on the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough:
- (3) So much as at the commencement of this Order is outstanding in respect of the moneys borrowed as aforesaid for the purposes of the Burial Acts together with so much

of any sums borrowed by the Corporation as at the commencement of this Order is owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough:

A.D. 1910.

*Wallsend
Order.*

- (4) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable:
- (5) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any sum borrowed as aforesaid or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made. Where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the Borough or the borough rate of the Borough as the case may be shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Art. XXI. The provisions of the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 and the Notification of Births Act 1907 shall be in force in and apply to the Borough as if the same had been adopted therein.

Adoptive
Acts.

Art. XXII. Subject to the provisions of any Order which the Local Government Board or a Secretary of State may hereafter make—

- (1) The provisions of any Order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough or their predecessors any of the matters mentioned in Section 33 of the Act of 1894 and in that Order shall be deemed to have effect as if any reference to the existing Parish of Wallsend extended and applied to the Parish of Wallsend:
- (2) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in force in the existing Borough any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough

Powers
under Sec-
tion 33 of
Act of 1894.

Powers
under Public
Health Acts
Amendment
Act 1907.
7 Edw. 7.
c. 53.

A.D. 1910.

WallSEND
Order.

extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough.

Transfer of
 public ele-
 mentary
 schools &c. to
 Corporation.

Art. XXIII. For the purposes and subject to the provisions of the Education Acts 1870 to 1909—

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of elementary education and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools land furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision :

Mortgage
 debts in
 respect of
 transferred
 schools.

- (2) The liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any other land furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :

(3) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:

A.D. 1910.
Wallsend
Order.
Education
byelaws.

(4) Any managers of public elementary schools in the added areas who were appointed by the Parish Council of the parish or Council of the district in which the school is situated or by the County Council shall vacate office at the commencement of this Order.

Vacation of
office by
school
managers.

Art. XXIV.—(1) The total amount in the pound of the general district rate and any rate in the nature of a general district rate to be levied in any one year by the Corporation in respect of any hereditament in the area of the Urban District shall not exceed such an amount in the pound as when added to the amount in the pound of the borough rate and any other rate made by the Corporation in the same year (not being a rate in respect of burial expenses) and levied in respect of that hereditament will make up—

Differential
rating.

(A) during a period of five years from the commencement of this Order a total of three shillings and eightpence in each pound of the rateable value of the hereditament; and

(B) during the period of five years from the Ninth day of November One thousand nine hundred and fifteen a total of three shillings and ninepence in each pound of the rateable value of the hereditament.

(2) During a period of ten years from the commencement of this Order the total amount in the pound of the general district rate to be levied by the Corporation in any one year in respect of any hereditament in the area of the existing parish of Willington shall not exceed such an amount in the pound as when added to the aggregate amount in the pound of all other rates levied on that hereditament will make up a total of five shillings and fivepence in each pound of the rateable value of the hereditament.

Art. XXV.—(1) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts.

Corporation
to be Burial
Board for
Borough.

(2) All property and liabilities of the Wallsend &c. Burial Area shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the Borough and the Wallsend &c. Burial Committee shall be abolished and cease to exist.

Abolition
of existing
Burial Com-
mittee.

(3) The Longbenton Burial Area shall be diminished by the exclusion therefrom of the added part of Longbenton.

Diminution
of Burial
Area.

[Ch. lxxxix.] *Local Government Board's* [10 EDW. 7 &
Provisional Order Confirmation (No. 15) Act, 1910. 1 GEO. 5.]

A.D. 1910.

Wallsend
 Order.

Saving rights
 of burial.

(4) In relation to a burial ground provided for the Wallsend &c. Burial Area or the Longbenton Burial Area—

Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a person has had or acquired before the commencement of this Order; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

Burial fees
 &c.

(5) Subject to the provisions of the Burial Act 1900 all fees payments and sums fixed and settled and receivable by the Wallsend &c. Burial Committee immediately prior to the commencement of this Order shall thenceforth be receivable by the Corporation acting as a Burial Board until or except in so far as any such fees payments or sums may be altered or varied in pursuance of the statutory provisions in that behalf.

Alteration of
 parishes.

Art. XXVI. The added part of Longbenton shall be separated from the existing Parish of Longbenton and that part and the Parishes of Willington and Willington Quay shall be amalgamated with the existing Parish of Wallsend.

Rural Dis-
 trict Coun-
 cillors and
 Guardians.

Art. XXVII. Subject to the provision of Section 60 of the Act of 1894 the following provisions shall have effect:—

(1) The number of Guardians for the Parish of Wallsend shall be increased from seven to eleven:

(2)—(A) The persons who at the commencement of this Order are holding the office of Guardian of the Poor for the existing Parish of Wallsend and for the Parish of Willington Quay and the person who at the said date is holding the offices of Rural District Councillor and Guardian of the Poor for the Parish of Willington shall be deemed to have been elected and shall represent the Parish of Wallsend upon the Board of Guardians of the Tynemouth Union until the date on which they would have retired if this Order had not been made; and

(B) The persons who at the said date are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Longbenton shall be deemed to have been elected for and shall represent the Parish of Longbenton until the date on which they would have retired if this Order had not been made.

Parish
 Councils.

Art. XXVIII.—(1) Any powers and duties transferred by the Act of 1894 to the Parish Council of the existing Parish of Longbenton

shall so far as regards the added part of Longbenton be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Longbenton had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part of Longbenton for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Longbenton by virtue of this Order be transferred to and vest in and attach to the Corporation.

A.D. 1910.

*Wallsend
Order.*

(2) The Parish Council of the existing Parish of Longbenton shall be deemed to have been elected and shall be the Parish Council for the Parish of Longbenton.

(3) Subject to the provisions of this Order the Parish Council of Willington shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council or to the Parish Meeting of that Parish shall be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if that Parish had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred for the purpose or by virtue of those powers or duties shall by virtue of this Order pass to and vest in or attach to the persons and authorities aforesaid Any property and liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of those powers or duties shall by virtue of this Order be transferred to and vest in and attach to the Corporation.

Art. XXIX. The accounts of the Urban Council the Wallsend and Willington Quay Joint Hospital Board the Wallsend &c. Burial Committee and the Parish Council of Willington and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made:

Audit of
accounts of
Urban Council
Parish
Council &c.

Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the treasurer of the Borough.

A.D. 1910.

*Wallsend
Order.*

Ecclesiastical
divisions and
charities.

Art. XXX. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish affected by this Order. The Local Government Board may make an Order under Section 33 of the Act of 1894 with respect to any charity of any of the existing Parishes of Wallsend Willington and Willington Quay as if those Parishes had not been amalgamated.

Valuation
lists.

Art. XXXI. Until new valuation lists are in force—

(1) The valuation lists of the Parishes of Willington and Willington Quay and the portion of the valuation list of the existing Parish of Longbenton which relates to hereditaments in the added part of Longbenton shall be deemed to form part of the valuation list of the Parish of Wallsend :

(2) The remaining portion of the valuation list of the existing Parish of Longbenton shall be deemed to be the valuation list of the Parish of Longbenton.

County rate
basis.

Art. XXXII.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered by the omission therefrom of references to the total annual value of the property in the Parishes of Willington and Willington Quay by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Longbenton of such a sum as will represent the annual value of the property in the added part of Longbenton and by the addition of the amount so deducted and of the amounts appearing in the said basis or standard as the total annual value of the property in the Parishes of Willington and Willington Quay to the amount appearing therein as the total annual value of the property in the Parish of Wallsend.

(2) For the purposes of this Article the sum which will represent the annual value of the property in the added part of Longbenton shall be the amount which in relation to the amount appearing in the basis or standard of the county rate as the total annual value of the existing Parish of Longbenton is in the proportion which the assessable value of the property in the added part of Longbenton bears to the total assessable value of property in the existing Parish of Longbenton.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing Parish of Longbenton or in the added part of Longbenton as the case may require.

Saving for
existing lists

Art. XXXIII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of

parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation:

A.D. 1910.

*Wallsend
Order.*

of parliamen-
tary voters
&c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting in the Parish of Longbenton the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Art. XXXIV. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say:—

Settlement
and removal
of the poor.

- (1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Willington Willington Quay Longbenton and Wallsend by reason of any residence completed or in the course of completion of any act or thing done or in the course of being done of any status condition right or privilege acquired or created or in the course of acquisition or creation—

- (i) in the existing Parish of Willington; or
- (ii) in the existing Parish of Willington Quay; or
- (iii) in the existing Parish of Wallsend; or
- (iv) in the added part of Longbenton; or
- (v) in that part of the existing Parish of Longbenton which by virtue of this Order will form the Parish of Longbenton

shall be deemed to have acquired or to be in the course of acquiring in the first second third and fourth cases a settlement in the Parish of Wallsend and in the fifth case a settlement in the Parish of Longbenton and in each case as if the existing parish or the added part or the specified part of the existing parish were and had always been the parish or a part of the parish in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

- (2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Tynemouth Union by reason of residence—

- (i) in the existing Parish of Willington; or
- (ii) in the existing Parish of Willington Quay; or
- (iii) in the existing Parish of Wallsend; or

[Ch. lxxxix.] *Local Government Board's* [10 EDW. 7 &
Provisional Order Confirmation (No. 15) Act, 1910. 1 GEO. 5.]

A.D. 1910.

*Wallsend
 Order.*

(iv) in the added part of Longbenton; or

(v) in that part of the existing Parish of Longbenton which by virtue of this Order will form the Parish of Longbenton

shall be deemed to have acquired or to be in course of acquiring the like status by reason of residence in the first second third and fourth cases in the Parish of Wallsend and in the fifth case in the Parish of Longbenton.

Saving for
 contribution
 orders and
 precepts.

Art. XXXV. Notwithstanding the alteration in the areas of the parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Tynemouth Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
 rates.

Art. XXXVI. All arrears of rates made by the Overseers of the Poor of the existing Parish of Longbenton or of the Parish of Willington or of the Parish of Willington Quay and due or owing at the commencement of this Order in respect of hereditaments in the added areas shall be collected and recovered by the Overseers of the Poor of the Parish of Longbenton or the Parish of Wallsend as the case may be as if this Order had not been made.

Saving of rights
 of Tyne Im-
 provement Com-
 missioners.

Art. XXXVII. Nothing in this Order shall prejudice or affect the jurisdiction rights or privileges of the Tyne Improvement Commissioners.

Saving of rights
 of Tyneside
 Tramways and
 Tramroads
 Company.

Art. XXXVIII. Nothing in this Order shall prejudice alter or restrict any rights powers interests or privileges of the Tyneside Tramways and Tramroads Company.

Saving for
 Newcastle-
 upon-Tyne
 Electric
 Supply Com-
 pany.

Art. XXXIX. Notwithstanding the extension of the Borough effected by this Order the Corporation shall not exercise within the added areas in relation to matters affecting the Newcastle-upon-Tyne Electric Supply Company Limited any powers other than those which at the date of the Order were exerciseable by the Urban Council or the Rural Council as the case may be.

Short title.

Art. XL. This Order may be cited as the Wallsend (Extension) Order 1910.

Given under the Seal of Office of the Local Government Board
 this Twenty-first day of June One thousand nine hundred
 and ten.

(I.S.)

JOHN BURNS President.
 H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
 WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
 OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
 E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.